



Republic of the Philippines
Department of Health
OFFICE OF THE SECRETARY

OCT 25 2019

ADMINISTRATIVE ORDER

No. 2014-0030-A

SUBJECT: Addendum to Administrative Order No. 2014-0030 "Revised Rules and Regulations Governing the Labeling of Prepackaged Food Products Further Amending Certain Provisions of Administrative Order No. 88-B s. 1984 or the "Rules and Regulations Governing the Labeling of Prepackaged Food Products Distributed in the Philippines," and For Other Purposes

I. RATIONALE

Pursuant to Republic Act (RA) 10963 otherwise known as "Tax Reform for Acceleration and Inclusion" (TRAIN) Law was enacted to (a) enhance the progressivity of the tax system through rationalization of the Philippine internal revenue tax system, thereby promoting sustainable and inclusive economic growth; (b) provide as much as possible, an equitable relief to a greater number of taxpayers and their families in order to improve levels of disposable income and increase economic growth; and (c) ensure that the government is able to provide for the needs of those under its jurisdiction and care through the provision of better infrastructure, health, education, jobs, and social protection for the people.

The Act covers sweetened beverages (SB) using purely caloric sweeteners, and purely non-caloric sweeteners, and/or a mix of caloric and non-caloric sweeteners, and high fructose corn syrup or in combination with any caloric or non-caloric sweeteners, which are subject to excise tax, except purely coconut sap sugar and purely steviol glycosides.

Under Section 47 of the TRAIN Law (E) amending Section 150-B of the National Internal Revenue Code (NIRC), it was provided that starting June 1, 2018, the FDA shall require all manufacturers and importers of SB covered by

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this Act to indicate on the label the type of sweetener used, and on sweetened beverages in powder form to indicate on the label the equivalent of each serving per liter of volume capacity.

Further, in Section 47 (E) Paragraph 2 of the TRAIN Law, the FDA shall also conduct post-marketing surveillance of the SB in supermarkets, groceries, or retail stores, and/or inspection of manufacturing sites to determine compliance with the requirements of this Section.

Thus, this addendum to Administrative Order No. 2014-0030 entitled *"Revised Rules and Regulation Governing the Labeling of Prepackaged Food Products Further Amending Certain Provisions of Administrative Order No. 88-B s. 1984 or The "Rules and Regulation Governing the Labeling of Prepackaged Food Products Distributed in the Philippines," and for other Purposes* is deemed imperative to include provision number 5 under item VI. B. Other Requirements to ensure that manufacturers (including repackers and toll-manufacturers), distributors (importers, wholesalers), and traders of SB products covered by the TRAIN Law adhered to Section 47.

II. OBJECTIVES

This Order reiterates the requirement to indicate the type of sweetener in the list of ingredients and sets the guidelines on the mandatory declaration of equivalent volume capacity in liter for SB in powder form to guide the manufacturers (including repackers and toll-manufacturers), distributors (importers, wholesalers), and traders.

III. SCOPE

This Order shall cover all SB products covered by the TRAIN Law that are manufactured, distributed, and traded in the Philippines.

IV. DEFINITION OF TERMS

Caloric sweetener refers to a substance that is sweet and includes sucrose, fructose, and glucose that produces certain sweetness.

For clarity, it also provides the body with energy.

Distributor/Importer/Exporter refers to any establishment that imports or exports raw material, ingredients and/or finished products for its own use or for wholesale distribution to other establishments or outlets.

Distributor/Wholesaler refers to any establishment that procures raw materials, and/or finished products from local establishment for local distribution.

High fructose corn syrup refers to a sweet saccharide mixture containing fructose and glucose which is derived from corn and added to provide sweetness to beverages, and which includes other similar fructose syrup preparations.

Label means a display of written, printed or graphic matter upon the immediate container of any article and a requirement made by or under authority of existing law that any word, statement, or other information appearing on the label shall not be considered to be complied with unless such word, statement or other information also appears on the outside container or wrapper of the retail package of such article or is easily legible through the outside container or wrapper.

Labeling means any written, printed or graphic matter (1) upon any article or any of its container or wrappers or (2) accompanying the packaged food.

Manufacturer means an establishment engaged in any and all operations involved in the production of health products including preparation, processing, compounding, formulating, filling, packaging, repacking, altering, ornamenting, finishing and labeling with the end view of its storage, sale or distribution.

Non-caloric sweetener refers to a substance that is artificially or chemically processed that produces a certain sweetness. These are substances which can be directly added to beverages, such as aspartame, sucralose, saccharin, acesulfame potassium, neotame, cyclamates and other non-nutritive sweeteners approved by the Codex Alimentarius and adopted by the FDA.

It does not provide energy or calories to the body.

Sweetened Beverages refer to non-alcoholic beverages of any constitution (liquid, powder, or concentrates) that are pre-packaged and sealed in accordance with the Food and Drug Administration (FDA) standards, that contain caloric and/or non-caloric sweeteners added by the manufacturers, and shall include, but not limited to the following, as described in the Food Category System from Codex Alimentarius Food Category Descriptors (Codex Stan 192-1995, Rev 2017 or the latest) as adopted by the FDA:

- a. Sweetened juice drinks;
- b. Sweetened tea;
- c. All carbonated beverages;
- d. Flavored water;
- e. Energy and sports drinks;

- f. Other powdered drinks not classified as milk, juice, tea, and coffee;
- g. Cereal and grain beverages; and
- h. Other non-alcoholic beverages that contain added sugar.

Sweetener is a substance, whether caloric or non-caloric, intentionally added to food product to impart sweetness.

Trader means any establishment which is a registered owner of food and food products and/or procures the raw materials and packing components, quality control standards and procedures, but subcontracts the manufacture of such product to a licensed manufacturer. In addition, a trader may also engage in the distribution and/or marketing of its products.

V. SPECIFIC RULES AND REGULATIONS

Under **B. Other Requirements** of Section VI. **Specific Rules and Regulations** of the AO 2014-0030, item number 5 shall be added to read as follows:

5. Sweetened Beverages

- 5.1 Indicate on the label the **type of sweetener used**, example: high fructose corn syrup, glucose, sucrose, sucralose, aspartame, etc. This is also in compliance with mandatory declaration of complete list of ingredients including the common name and functional category of food additives under item number 3 of VI.A. Mandatory Label Information.
- 5.2 For sweetened beverages in **powder form**, indicate a legible statement on the **number of liters per pack size or store keeping unit (SKU)** (net weight/volume). Since the information is connected to the direction on how to prepare the product, it shall be printed under the *Direction/Instruction(s) for Use*.

Example: This pack makes 5 liters.

VI. TRANSITORY PROVISIONS

All SB in powder form with existing approved Certificate of Product Registration (CPR) shall be allowed to exhaust old labels until 31 December 2019.

CPR applications (initial and amendment) filed starting 01 December 2019 shall comply with this Order.

VII. REPEALING CLAUSE

All other provisions of the A.O. 2014-0030 shall remain in effect and provisions/issuances inconsistent or contrary to this Order are hereby rescinded or modified accordingly.

VIII. EFFECTIVITY

This Order shall take effect fifteen (15) days after filing at the UP Law Center and publication in a newspaper of general circulation.


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Secretary of Health